

ASCI Advertising Standards (2)

ASCI Code Fairness in Comparative Advertising

Title: Fair Competition and Comparative Advertising

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter IV — Fair in Competition, Clause 4.1

Plain English Summary:

An advertiser may compare its product with a competitor's product, including naming the competitor, but the comparison must be clear, factual, accurate, substantiated, and not misleading. For an Ayurvedic startup, claims such as “more effective than Brand X” or “better than conventional treatment” should therefore be supported by appropriate evidence and must not unfairly discredit competitors.

The Exact Legal Text:

ASCI Code, Chapter IV, Clause 4.1:

Advertisements containing comparisons with other manufacturers or suppliers, or with other products, including those where a competitor is named, are permissible in the interests of vigorous competition and public enlightenment, provided:

- (a) It is clear what aspects of the advertiser's product are being compared with what aspects of the competitor's product.
- (b) The subject matter of comparison is not chosen in such a way as to confer an artificial advantage upon the advertiser or so as to suggest that a better bargain is offered than is truly the case.
- (c) The comparisons are factual, accurate and capable of substantiation.
- (d) There is no likelihood of the consumer being misled as a result of the comparison, whether about the product advertised or that with which it is compared.
- (e) The advertisement does not unfairly denigrate, attack or discredit other products, advertisers or advertisements directly or by implication.

Keywords/Triggers:

comparative advertising, competitor comparison, Ayurvedic product comparison, substantiation of comparison, competitor denigration, misleading comparison, ASCI Clause 4.1, fair competition

ASCI Code Unfair Use of Competitor's Name or Trademark

Title: Protection of Competitor Names, Trademarks and Goodwill

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter IV Fair in Competition, Clause 4.2

Plain English Summary:

An advertisement must not unfairly use another company's name, initials, trademark, symbol, or advertising goodwill to benefit the advertiser. An Ayurvedic startup should therefore avoid designing advertisements or making claims that improperly exploit the reputation or brand recognition of another company.

The Exact Legal Text:

ASCI Code, Chapter IV, Clause 4.2:

Advertisements shall not make unjustifiable use of the name or initials of any other firm, company or institution, nor take unfair advantage of the goodwill attached to the trademark or symbol of another firm, its product or the goodwill acquired by its advertising campaign.

Keywords/Triggers:

competitor trademark, brand goodwill, unfair brand use, competitor name advertising, trademark advertising, ASCI Clause 4.2, brand exploitation, Ayurvedic competitor advertising

ASCI Code Plagiarism of Advertisements

Title: Prohibition of Advertising Plagiarism

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter IV Fair in Competition, Clause 4.3

Plain English Summary:

An advertisement should not imitate another advertiser's earlier advertisement so closely that it suggests plagiarism. This applies to elements such as layout, wording, slogans, visual presentation, music, and sound effects, so an Ayurvedic brand should create original advertising material rather than closely copying a competitor's campaign.

The Exact Legal Text:**ASCI Code, Chapter IV, Clause 4.3:**

Advertisements shall not be similar to any other advertiser's earlier run advertisements in general layout, copy, slogans, visual presentations, music or sound effects, so as to suggest plagiarism.

Keywords/Triggers:

advertising plagiarism, copied advertisement, competitor campaign, slogan copying, visual copying, ASCI Clause 4.3, advertising copyright, original advertising

ASCI Code Plagiarism of Advertisements Released Abroad

Title: Complaints Regarding Foreign Advertising Plagiarism

Jurisdiction: India

Category: Advertising

Source Citation: ASCI Code for Self-Regulation in Advertising, Chapter IV Fair in Competition, Clause 4.4(a)–(b)

Plain English Summary:

Complaints concerning plagiarism of advertisements that were previously released abroad generally fall outside the Code, except in specified circumstances. A complaint may be considered where it is filed within **12 months of the first general circulation** of the advertisement/campaign and the complainant can substantiate prior invention or use abroad.

The Exact Legal Text:**ASCI Code, Chapter IV, Clause 4.4:**

As regards matters covered by sections 2 and 3 above, complaints of plagiarism of advertisements released earlier abroad will lie outside the scope of this Code, except in the under-mentioned circumstances:

(a) The complaint is lodged within 12 months of the first general circulation of the advertisements/campaign complained against.

(b) The complainant provides substantiation regarding the claim of prior invention/usage abroad.

Keywords/Triggers:

foreign advertisement plagiarism, international advertising copy, prior advertising use, ASCI Clause 4.4, plagiarism complaint, 12 month advertising complaint, foreign campaign copying, prior invention